

FLOOR AMENDMENT

HOUSE OF REPRESENTATIVES

State of Oklahoma

SPEAKER:

CHAIR:

I move to amend HB4420 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____

Amendment submitted by: Kyle Hilbert

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

HOUSE BILL NO. 4420

By: Hilbert, Archer, Lepak,
Kerbs, Hall, Lay, Caldwell
(Chad), Pae, Harris, and
Wolfley of the House

and

Pugh of the Senate

FLOOR SUBSTITUTE

An Act relating to the Strong Readers Act; amending 70 O.S. 2021, Section 1210.508A, as amended by Section 3, Chapter 411, O.S.L. 2024 (70 O.S. Supp. 2025, Section 1210.508A), which relates to the short title of the act; updating references; amending 70 O.S. 2021, Section 1210.508B, as amended by Section 4, Chapter 411, O.S.L. 2024 (70 O.S. Supp. 2025, Section 1210.508B), which relates to legislative findings; declaring intent of the Legislature; defining terms; amending 70 O.S. 2021, Section 1210.508C, as last amended by Section 2, Chapter 297, O.S.L. 2025 (70 O.S. Supp. 2025, Section 1210.508C), which relates to reading screenings; including reading deficiencies for identification in screenings; requiring the Office of Educational Quality and Accountability to evaluate three screening instruments; requiring the State Department of Education to choose one screening instrument; relocating screening instrument requirements to different subsection; adding criteria to screening instrument; eliminating duplicative language; removing reference to additional reading assessments; eliminating reference to programs of reading instruction; eliminating reference to program of reading instruction requirements; providing students who are not meeting grade-level reading targets with Tier 2 or Tier 3 reading intervention programs;

1 including certain fourth-grade students in receiving
2 reading intervention plans; adding principal or
3 designate to reading intervention team; requiring
4 monthly progress updates to parents; requiring
5 benchmarks for screening instrument results;
6 requiring annual analysis and reporting of screening
7 instruments tiers; prohibiting digital technology
8 from solely being used in reading intervention;
9 requiring reading specialist or interventionist input
10 for a district's strong reader plan; requiring annual
11 updates only for changes made to the plan;
12 eliminating reference to reporting exceptions for
13 annual plan updates; eliminating reference to
14 students who are reading proficient and parental
15 notifications for proficient students; eliminating
16 duplicate language; requiring retention review for
17 certain kindergarten, first, and second-grade
18 students; allowing consideration of student growth
19 for certain retention determinations for first and
20 second grade students; requiring summer tutoring or
21 summer reading academy option for certain
22 kindergarten, first and second-grade students;
23 allowing rescreening of retained kindergarten, first,
24 and second-grade students; exempting certain second-
grade students from third-grade retention
requirements; requiring parental notifications for
Tier 2 and Tier 3 interventions; requiring Tier 2 or
Tier 3 interventions for certain incoming third-grade
students; requiring a review of progress and
additional services for certain incoming third-grade
students; requiring demonstration of sufficient
reading skills for promotion to fourth grade
beginning in the 2027-2028 school year; mandating
that third-grade students be retained in the third
grade if certain conditions are not met; providing
good-cause exemptions from third-grade retention;
allowing option for parents to retain student when
good-cause exemption applies; implementing a good-
cause exemption request process; adding parental
notification requirement of student retention;
clarifying certain students are subject to screening
and testing requirements when re-entering public
school system; requiring additional reading
intervention supports for retained students beginning
in the 2028-2029 school year; detailing additional
support and services to be provided to retained
students; requiring parental notification of a Read

1 at Home Plan; adding school district reporting and
2 publication requirements; adding State Department of
3 Education reporting requirements; amending 70 O.S.
4 2021, Section 1210.508D, as amended by Section 6,
5 Chapter 411, O.S.L. 2024 (70 O.S. Supp. 2025, Section
6 1210.508D), which relates to funding; adding a base
7 allocation of funds for schools to support the Strong
8 Readers Act on a per student basis; changing the
9 funding amount weights schools may receive for
10 students who need reading remediation; clarifying
11 that supplemental funding is for Tier 2 or Tier 3
12 reading interventions; requiring the Board of
13 Education to promulgate rules; providing incentive
14 funding to schools that demonstrate certain student
15 progress out of Tier 2 and Tier 3 reading
16 interventions; eliminating references to certain
17 provisional development allocations; eliminating
18 reference to certain professional development
19 stipend; amending 70 O.S. 2021, Section 1210.508E, as
20 amended by Section 7, Chapter 411, O.S.L. 2024 (70
21 O.S. Supp. 2025, Section 1210.508E), which relates to
22 summer academy programs; clarifying that summer
23 reading academies shall include Tier 2 or Tier 3
24 intervention services to correct reading
deficiencies; requiring school districts to provide
summer reading academies or Tier 2 or Tier 3 reading
intervention programs to certain students; mandating
minimum hours of instructional time; requiring
certain reading intervention options to be provided
to third through eighth grades within certain
timeframe; requiring school districts to report on
Tier 2 or Tier 3 reading intervention options;
amending 70 O.S. 2021, Section 1210.508F, as last
amended by Section 3, Chapter 297, O.S.L. 2025 (70
O.S. Supp. 2025, Section 1210.508F), which relates to
teacher training requirements; eliminating reference
to adjuncts; providing professional development
options; clarifying instruction to prospective
teachers; mandating that teacher candidates receive
certain instruction regarding balanced literacy and
whole language models; amending Section 2, Chapter
288, O.S.L. 2023, as amended by Section 9, Chapter
411, O.S.L. 2024 (70 O.S. Supp. 2025, Section
1210.508H), which relates to the literacy
instructional team; making the literacy instructional
team pilot program permanent; changing team language
to coaches; requiring literacy coaches to provide

1 certain job support for K-3 teachers, schools, and
2 administrators; requiring certain training; requiring
3 minimum regional literacy coaches; giving priority to
4 teachers with certain degrees and experience;
5 allowing districts to use currently employed literacy
6 coaches under certain circumstances; requiring the
7 Department to develop academies for teachers to
8 obtain early literacy micro-credentials for certain
9 districts; providing literacy coach assignment
10 criteria; providing literacy coach duties;
11 withholding certain funding if schools decline help
12 from literacy coaches; requiring Department of
13 Education to provide stipends and program fees for
14 certain teacher training academies; creating the
15 Strong Readers Revolving Fund; designating source of
16 funds; designating Department to receive and expend
17 funds; requiring donors to designate specific places
18 to receive monies; requiring strict adherence to
19 donor designations; providing additional monetary
20 uses; providing for codification; and declaring an
21 emergency.

22
23
24
25 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

26 SECTION 1. AMENDATORY 70 O.S. 2021, Section 1210.508A,
27 as amended by Section 3, Chapter 411, O.S.L. 2024 (70 O.S. Supp.
28 2025, Section 1210.508A), is amended to read as follows:

29 Section 1210.508A. Sections 1210.508A through ~~1210.508H~~
30 1210.508J of this title shall be known and may be cited as the
31 "Strong Readers Act".

32 SECTION 2. AMENDATORY 70 O.S. 2021, Section 1210.508B,
33 as amended by Section 4, Chapter 411, O.S.L. 2024 (70 O.S. Supp.
34 2025, Section 1210.508B), is amended to read as follows:

1 Section 1210.508B. A. The Legislature finds that it is
2 essential for children in the public schools to read early and well
3 in elementary school. The Legislature further finds that clear and
4 visible goals, assessments to determine the reading level at each
5 elementary school, use of a scientifically based and researched
6 methodology in reading instruction in addition to regular and
7 periodic measurements of elementary school reading improvement, and
8 accountability in each level of the educational system will result
9 in a significant increase in the number of children reading at or
10 above grade level.

11 B. The purpose of the Strong Readers Act is to ensure that
12 progression from one grade to another is determined, in part, upon
13 proficiency in reading, that school district board of education
14 policies facilitate reading instruction and intervention services to
15 address student reading needs, and that each student and his or her
16 parent or legal guardian be informed of that student's reading
17 progress. It is the intent of the Legislature that every student
18 reads at or above grade level by the end of third grade.

19 C. To carry out the purpose of this act, it is the intent of
20 the Legislature that the identification, instruction, and
21 intervention required under the Strong Readers Act be implemented
22 within a multi-tiered system of supports (MTSS) framework that
23 emphasizes strong core literacy instruction for all students and
24

1 provides increasing levels of instructional intensity based on
2 student need and demonstrated response to instruction.

3 D. It is further the intent of the Legislature that strong core
4 literacy instruction consists of explicit, systematic instruction in
5 foundational reading and writing skills, including phonological
6 awareness, decoding, encoding, spelling, sentence-level writing,
7 language development, fluency, vocabulary, and comprehension,
8 recognizing the reciprocal relationship between reading and writing
9 proficiency.

10 E. Each public school district in this state shall ensure that
11 all students receive a well-rounded education that is focused on
12 building deep foundations in reading, writing, and mathematics. The
13 State Board of Education shall encourage school districts to
14 integrate the teaching of the other curricular areas in the subject
15 matter standards adopted by the Board with the instruction of
16 reading, writing, and mathematics. All teachers of reading in the
17 public schools in this state in kindergarten through third grade
18 shall incorporate into instruction the five elements of reading
19 instruction which are phonological awareness, decoding, fluency,
20 vocabulary, and comprehension.

21 ~~D.~~ F. It is the intent of the Legislature that beginning with
22 the 2025-2026 school year, school districts and charter schools in
23 this state shall be prohibited from using the three-cueing system
24 model of teaching students to read. For the purposes of this

1 section, the "three-cueing system" means any model of teaching
2 students to read based on meaning, structure, syntax, and visual
3 cues, which may also be known as meaning, structure, and visual
4 (MSV), balanced literacy, or whole language.

5 SECTION 3. NEW LAW A new section of law to be codified
6 in the Oklahoma Statutes as Section 1210.508B-1 of Title 70, unless
7 there is created a duplication in numbering, reads as follows:

8 A. As used in the Strong Readers Act:

9 1. "Grade-level targets" means the grade-specific benchmark
10 scores established for the screening instrument selected by the
11 State Board of Education in coordination with the Commission on
12 Educational Quality and Accountability.

13 2. "Highly qualified teacher" means a teacher or provider with
14 appropriate training and demonstrated competency in evidence-based
15 reading intervention.

16 3. "Literacy coach" means an educator with demonstrated
17 expertise in evidence-based literacy instruction who provides job-
18 embedded professional learning, modeling, observation, and feedback
19 to teachers to strengthen core instruction and intervention
20 practices within a multi-tiered system of supports framework. The
21 primary responsibility of a literacy coach is to support educators
22 and administrators in improving instructional practices and
23 schoolwide literacy systems. A literacy coach shall not serve in a
24

1 supervisory or evaluative capacity to maintain a non-evaluative role
2 that fosters professional trust and growth.

3 4. "Multi-tiered system of supports" (MTSS) means a framework
4 that provides strong core literacy instruction to all students and
5 increasingly intensive levels of instructional support based on
6 student need and demonstrated response to instruction.

7 5. "Reading deficiency" means performance below grade-level
8 targets on a screening or diagnostic assessment indicating that a
9 student is not meeting grade-level expectations in one or more
10 reading skill areas.

11 6. "Reading interventionist" means an educator trained in
12 evidence-based reading instruction who provides supplemental or
13 intensive intervention to students identified with a reading
14 deficiency or significant reading deficiency, aligned to student
15 data and delivered in addition to core instruction.

16 7. "Reading specialist" means an educator who has completed
17 advanced preparation in literacy instruction and assessment and is
18 responsible for designing, delivering, and monitoring targeted and
19 intensive reading interventions, as well as supporting teachers in
20 addressing reading deficiencies across grade levels. A reading
21 specialist shall have completed a graduate-level specialist degree
22 in reading or literacy, passed the applicable certification
23 examination, and hold a valid teaching certificate with a reading
24 specialist endorsement.

1 8. "Science of reading" means the body of scientifically based
2 research conducted over several decades and across multiple
3 countries, drawing from multiple disciplines including cognitive
4 psychology, linguistics, neuroscience, and education, that explains
5 how individuals learn to read and write. The science of reading
6 informs instructional practices that are explicit, systematic, and
7 cumulative, and are aligned to the development of phonological
8 awareness, decoding, fluency, vocabulary, comprehension, written
9 expression, and oral language development.

10 9. "Significant reading deficiency" means a reading deficiency
11 that persists despite supplemental intervention and indicates a need
12 for intensive intervention based on student data and response to
13 instruction.

14 10. "Tier 1 - Core Instruction" (Tier 1) means:

15 a. the evidence-based reading instruction provided to all
16 students as part of the general education program.

17 Tier 1 instruction shall include high-quality,
18 standards-aligned literacy instruction grounded in the
19 science of reading and delivered during the regular
20 instructional day,

21 b. Tier 1 shall include universal screening in
22 kindergarten through third grade and ongoing
23 assessment used to identify students who may require
24 additional instructional support. Tier 1 may also

1 include targeted instructional supports delivered
2 within the core instructional setting to address
3 emerging reading needs, and

4 c. Tier 1 instruction is intended to meet the needs of
5 the majority of students through strong classroom
6 instruction and prevention-focused supports.

7 11. "Tier 2 - Supplemental Intervention" (Tier 2) means:

8 a. targeted reading intervention provided in addition to
9 Tier 1 core instruction for students identified
10 through screening and progress-monitoring data as
11 requiring additional instructional support to meet
12 grade-level reading expectations. Tier 2 intervention
13 shall:

14 (1) provide additional instructional time beyond Tier
15 1 core instruction,

16 (2) be delivered in small-group settings, typically
17 consisting of three to five students, using
18 evidence-based instructional practices aligned
19 with the science of reading,

20 (3) target specific skill deficits identified through
21 assessment data, and

22 (4) include regular progress monitoring to determine
23 the effectiveness of the intervention and guide
24 instructional adjustments.

b. a student shall be designated as receiving Tier 2 supplemental intervention only when the student is actively participating in scheduled intervention services beyond Tier 1 instruction.

12. "Tier 3 - Intensive Intervention" (Tier 3) means:

a. individualized or highly targeted reading intervention provided in addition to Tier 1 core instruction and Tier 2 supplemental intervention for students demonstrating a significant reading deficiency. Tier 3 intervention shall:

(1) provide substantially increased instructional intensity and frequency beyond Tier 2 supports,

(2) be delivered in individualized or small group settings, typically consisting of one to three students,

(3) be guided by diagnostic assessment to address specific reading skill deficits, and

(4) include frequent progress monitoring to evaluate student response to intervention and guide instructional decision-making.

b. A student shall be designated as receiving Tier 3 intensive intervention only when the student is actively participating in scheduled intensive intervention services beyond Tier 1 instruction.

1 B. The State Board of Education shall promulgate rules
2 establishing implementation guidance for each tier defined in
3 paragraphs 10 through 12 of this section, including expectations
4 related to instructional time, group size, documentation
5 requirements, and progress-monitoring practices necessary to ensure
6 the effective delivery of intervention services.

7 SECTION 4. AMENDATORY 70 O.S. 2021, Section 1210.508C,
8 as last amended by Section 2, Chapter 297, O.S.L. 2025 (70 O.S.
9 Supp. 2025, Section 1210.508C), is amended to read as follows:

10 Section 1210.508C. A. To identify students who have a reading
11 deficiency or characteristics of dyslexia that lead to or cause
12 reading difficulty, each student enrolled in kindergarten and first,
13 second, and third grade in a public school in this state shall be
14 screened at the beginning, middle, and end of each school year for
15 monitoring of progress and for measurement of reading skills
16 ~~including, but not limited to, phonological awareness, decoding,~~
17 ~~fluency, vocabulary, and comprehension. A screening instrument~~
18 ~~approved by the State Board of Education, in consultation with the~~
19 ~~Commission for Educational Quality and Accountability and the~~
20 ~~Secretary of Education, shall.~~ The Office of Educational Quality
21 and Accountability shall evaluate and rank up to three screening
22 instruments, which shall be approved by the Commission for
23 Educational Quality and Accountability. The State Board of
24

1 Education shall select one screening instrument approved by the
2 Commission to be utilized for the purposes of this section.

3 The selected screening instrument shall meet the following
4 criteria:

5 1. Can assess for phonological awareness, sound symbol
6 recognition, alphabet knowledge, rapid naming skills, decoding and
7 encoding skills, oral reading accuracy and fluency, vocabulary, and
8 comprehension, as developmentally appropriate;

9 2. Can document the validity and reliability of each
10 assessment;

11 3. Can identify students who are at risk for reading and math
12 deficiency and monitor student progress throughout the school year;

13 4. Can be linked to, and can accurately predict, performance on
14 the Oklahoma School Testing Program;

15 5. Is normed beyond elementary grades;

16 6. Can assess students with disabilities and English language
17 learners;

18 7. Is accompanied by a data management system that provides
19 profiles of each student, class, grade level, and school building.

20 The profiles shall identify the instructional point of need and
21 reading achievement level for each student; and

22 8. Is capable of reporting student-level data to the State
23 Department of Education and the Office of Educational Quality and
24 Accountability.

1 B. In determining which screening instrument to approve and
2 utilize, the ~~State Board of Education~~, the Commission for
3 Educational Quality and Accountability, and the ~~Secretary~~ State
4 Board of Education shall take into consideration at a minimum the
5 following factors:

6 1. The time required to conduct the screening instrument with
7 the intention of minimizing the impact on instructional time;

8 2. The timeliness in reporting screening instrument results to
9 teachers, administrators, and parents and legal guardians of
10 students; ~~and~~

11 3. The integration of the screening instrument into reading and
12 math curriculum.

13 ~~B. Beginning in the 2025-2026 school year, the State Board of~~
14 ~~Education shall approve no fewer than three screening instruments~~
15 ~~for use at the beginning, middle, and end of the school year for~~
16 ~~monitoring of progress and for measurement of reading skills as~~
17 ~~required in subsection A of this section. The screening instruments~~
18 ~~shall meet the following criteria:~~

19 1. ~~Assess for phonological awareness, decoding fluency,~~
20 ~~vocabulary, and comprehension;~~

21 2. ~~Document the validity and reliability of each assessment;~~

22 3. ~~Can be used for identifying students who are at risk for~~
23 ~~reading deficiency and progress monitoring throughout the school~~
24 ~~year;~~

1 ~~4. Can be used to assess students with disabilities and English~~
2 ~~language learners; and~~

3 ~~5. Accompanied by a data management system that provides~~
4 ~~profiles of each student, class, grade level, and school building.~~
5 ~~The profiles shall identify each student's instructional point of~~
6 ~~need and reading achievement level. The State Board shall also~~
7 ~~determine other comparable reading assessments for diagnostic~~
8 ~~purposes to be used for students at risk of reading failure; and~~

9 4. The ability to report all reading screening results to both
10 the State Department of Education and the Office of Educational
11 Quality and Accountability.

12 C. 1. Exemptions to the screening requirements of this section
13 may be provided to students who have documented evidence that they
14 meet at least one of the following criteria as related to the
15 provision of classroom instruction:

16 a. the student participates in the Oklahoma Alternate
17 Assessment Program (OAAP) and is taught using
18 alternate methods,

19 b. the student's primary expressive or receptive
20 communication is sign language,

21 c. the student's primary form of written or read text is
22 Braille, or

23 d. the student's primary expressive or receptive language
24 is not English, the student is identified as an

English learner using a state-approved identification assessment, and the student has had less than one (1) school year of instruction in an English-learner program.

2. A public school that grants an exemption pursuant to paragraph 1 of this subsection shall provide ongoing evidence of student progression toward English language acquisition with the same frequency as administration of screening assessments. Evidence may include, but not be limited to, student progression toward OAAP reading essential elements, proficiency in sign language and reading comprehension, and proficiency in Braille and reading comprehension.

D. 1. Students who are administered a screening instrument pursuant to subsection A of this section and are found not to be meeting grade-level targets shall be provided a program of ~~reading instruction designed to enable students to acquire the appropriate grade-level reading skills. The program of reading instruction shall be based on scientific reading research and align with the subject matter standards adopted by the State Board of Education. A program of reading instruction shall include:~~

- ~~a. sufficient additional in-school instructional time for the acquisition of phonological awareness, decoding, fluency, vocabulary, and comprehension~~
- ~~b. if necessary and if funding is available, tutorial instruction after regular school hours, on Saturdays,~~

1 ~~and during summer; however, such instruction may not~~
2 ~~be counted toward the one hundred eighty-day or one-~~
3 ~~thousand eighty-hour school year required in Section~~
4 ~~1-109 of this title,~~

5 ~~e. assessments identified for diagnostic purposes and~~
6 ~~periodic monitoring to measure the acquisition of~~
7 ~~reading skills including, but not limited to,~~
8 ~~phonological awareness, decoding, fluency, vocabulary,~~
9 ~~and comprehension, as identified in the student's~~
10 ~~program of reading instruction,~~

11 ~~d. high-quality instructional materials grounded in~~
12 ~~scientifically based reading research and~~

13 ~~e. a means of providing every family of a student in~~
14 ~~prekindergarten, kindergarten, and first, second, and~~
15 ~~third grade access to free online evidence-based~~
16 ~~literacy instruction resources to support the~~
17 ~~student's literacy development at home. Tier 2 or~~
18 ~~Tier 3 interventions, as determined by their~~
19 ~~individual reading intervention plan. Such reading~~
20 ~~interventions shall not occur during math instruction.~~

21 2. A student enrolled in kindergarten or first, second, or
22 third grade who exhibits a ~~deficiency in~~ reading deficiency at any
23 time based on the screening instrument administered pursuant to
24 subsection A of this section and any fourth-grade student promoted

1 for good cause pursuant to subsection L of this section shall
2 receive an individual reading intervention plan no later than thirty
3 (30) days after the identification of the ~~deficiency in~~ reading
4 deficiency. The reading intervention plan shall be provided in
5 addition to ~~core~~ Tier 1 reading instruction that is provided to all
6 students. The reading intervention plan shall:

- 7 a. describe the ~~research-based~~ Tier 2 or Tier 3 reading
8 intervention services the student will receive to
9 remedy the ~~deficiency in~~ reading deficiency,
- 10 b. provide explicit and systematic instruction in
11 phonological awareness, decoding, fluency, vocabulary,
12 and comprehension, as applicable,
- 13 c. monitor the reading progress of each student's reading
14 skills throughout the school year and adjust
15 instruction according to the student's needs, and
- 16 d. continue until the student is determined to be meeting
17 grade-level targets in reading based on screening
18 instruments administered pursuant to subsection A of
19 this section or assessments identified for diagnostic
20 purposes and periodic monitoring pursuant to
21 subparagraph c of paragraph 1 of this subsection.

22 3. The reading intervention plan for each student identified
23 with a ~~deficiency in~~ reading deficiency shall be developed by a
24 Student Reading Proficiency Team and shall include supplemental

1 instructional services and supports. Each team shall be composed
2 of:

- 3 a. the parent or legal guardian of the student,
- 4 b. the teacher assigned to the student who had
5 responsibility for reading instruction in that
6 academic year,
- 7 c. a teacher who is responsible for reading instruction
8 and is assigned to teach in the next grade level of
9 the student, ~~and~~
- 10 d. a certified reading specialist or an individual with
11 advanced training or specialization in literacy
12 instruction, ~~if one is available and~~
- 13 e. principal, vice principal, or designate.

14 4. ~~A school district shall notify the parent or legal guardian~~
15 ~~of any student in kindergarten or first, second, or third grade who~~
16 ~~exhibits a deficiency in reading at any time based on the screening~~
17 ~~instrument administered pursuant to subsection A of this section.~~
18 ~~The notification shall occur no later than thirty (30) days after~~
19 ~~the identification of the deficiency in reading. The State Board of~~
20 Education, in consultation with the Office of Educational Quality
21 and Accountability, shall annually define and set benchmarks for
22 screening instrument results that are predictive of future
23 performance on the state summative assessment to assist in
24 identifying intervention tiers within a reading intervention plan.

1 Annually, the Office of Educational Quality and Accountability shall
2 analyze and report to the State Department of Education the
3 correlation of screening instrument tiers to state summative tiers
4 using predictive modeling and prior year formative and summative
5 testing results.

6 5. Reading intervention shall not be provided solely by digital
7 technology. Reading intervention shall include a majority of direct
8 instruction from a teacher or reading specialist trained in the
9 science of reading.

10 E. 1. Every school district shall adopt and implement a
11 district strong readers plan which has had input from school
12 administrators, teachers, and parents and legal guardians, and ~~if~~
13 ~~possible~~ a reading specialist or interventionist, and which shall be
14 submitted electronically to and approved by the State Board of
15 Education. The plan shall be updated annually if changes have been
16 made to the plan. ~~School districts shall not be required to~~
17 ~~electronically submit the annual updates to the Board if the last~~
18 ~~plan submitted to the Board was approved and expenditures for the~~
19 ~~program include only expenses relating to individual and small group~~
20 ~~tutoring, purchase of and training in the use of screening and~~
21 ~~assessment measures, summer school programs, and Saturday school~~
22 ~~programs. If any expenditure for the program is deleted or changed~~
23 ~~or any other type of expenditure for the program is implemented, the~~
24 ~~school district shall be required to submit the latest annual update~~

1 ~~to the Board for approval.~~ The district strong readers plan shall
2 include a plan for each site which includes an analysis of the data
3 provided by the Oklahoma School Testing Program and other reading
4 assessments utilized as required in this section, and which outlines
5 how each school site will comply with the provisions of the Strong
6 Readers Act.

7 2. The State Board of Education shall adopt rules for the
8 implementation and evaluation of the provisions of the Strong
9 Readers Act. The evaluation shall include, but not be limited to,
10 an analysis of the data required in subsection ~~E~~ S of this section.

11 ~~F. 1. Any first-grade, second-grade, or third-grade student~~
12 ~~who demonstrates proficiency in reading through a grade-level~~
13 ~~appropriate screening instrument approved pursuant to subsection B~~
14 ~~of this section shall not require a program of reading instruction~~
15 ~~or an individual reading intervention plan. After a student has~~
16 ~~demonstrated proficiency through a screening instrument, the~~
17 ~~district shall provide notification to the parent or legal guardian~~
18 ~~of the student that he or she has satisfied the requirements of the~~
19 ~~Strong Readers Act. The district shall continue to monitor the~~
20 ~~student in the next successive grade level to ensure he or she~~
21 ~~maintains proficiency.~~

22 ~~2. Beginning with the 2025-2026 school year, if a third-grade~~
23 ~~student is identified at any point of the academic year as having a~~
24 ~~significant reading deficiency, which shall be defined as not~~

1 ~~meeting grade-level targets on a screening instrument administered~~
2 ~~pursuant to subsection A of this section, the district shall provide~~
3 ~~the student with intensive intervention services for the appropriate~~
4 ~~amount of the instructional day consistent with the individual~~
5 ~~reading intervention plan developed pursuant to paragraph 2 of~~
6 ~~subsection D of this section and as determined by the Student~~
7 ~~Reading Proficiency Team. Intensive intervention services shall~~
8 ~~continue until the student demonstrates proficiency at his or her~~
9 ~~grade level based on a screening instrument administered pursuant to~~
10 ~~subsection A of this section.~~

11 G. 1. a. If a kindergarten, first, or second-grade student has
12 demonstrated the need for Tier 2 or Tier 3
13 intervention services by either the midyear or the
14 end-of-year screening, the Reading Proficiency Team of
15 the student shall meet prior to the end of the school
16 year to discuss voluntary retention of the student.
17 If a first or second-grade student previously met the
18 midyear screening basic benchmark and has shown growth
19 for the remainder of the year, the Reading Proficiency
20 Team may consider the growth of the student in its
21 retention determination. Retention under this
22 paragraph shall be optional and based upon the
23 recommendations of at least five members of the
24 Reading Proficiency Team of the student.

1 b. If the student is not retained in the kindergarten,
2 first, or second grade, the family of the student
3 shall be provided with a summer tutoring program or
4 the ability to attend a summer reading academy. The
5 State Department of Education shall also approve one
6 or two online or workbook-based summer tutoring
7 programs for use by students under this paragraph.
8 School districts shall also provide the parents or
9 legal guardians of the student with a list of summer
10 literacy programs available if a summer academy, as
11 described in Section 1210.508E of this title, is not
12 offered by the school district.

13 c. If the Reading Proficiency Team of the student
14 determines that retention of the student in
15 kindergarten or in the first or second grade is
16 necessary, the student shall be permitted to re-screen
17 prior to the start of the subsequent school year on a
18 date determined by school personnel if the rescreening
19 is requested by the parent or legal guardian of the
20 student, at least five members of the Reading
21 Proficiency Team of the student agree to the re-
22 screening, and a reasonable time has been provided for
23 summer remediation. After reviewing the results of
24 the re-screening of the student, the Reading

1 Proficiency Team shall redetermine if voluntary
2 retention is appropriate.

3 2. The State Department of Education may voluntarily administer
4 the Oklahoma State Testing Program (OSTP) to second-grade students
5 beginning in the 2027-2028 school year. Students who take the OSTP
6 in second grade and score a basic or above achievement level are
7 exempt from third-grade retention requirements provided in
8 subsection K of this section.

9 G. Each school district shall annually report in an electronic
10 format to the State Department of Education, the Office of
11 Educational Quality and Accountability, and the Secretary of
12 Education the number of students in kindergarten through third grade
13 per grade level who exhibit grade-level reading proficiency, the
14 number of students per grade level who received ~~intensive~~ Tier 2 or
15 Tier 3 intervention services pursuant to ~~paragraph 2 of subsection F~~
16 D of this section, the number of students per grade level who
17 attended a summer academy as provided for in Section 1210.508E of
18 this title, the number of students per grade level who exhibited
19 improved reading proficiency after completion of ~~intensive~~ Tier 2 or
20 Tier 3 intervention services, and the number of students per grade
21 level who are still in need of ~~intensive~~ Tier 2 or Tier 3
22 intervention services. The State Department of Education shall
23 publicly report the aggregate and district-specific numbers
24 submitted pursuant to this subsection on its website and shall

1 provide electronic copies of the report to the Governor, Secretary
2 of Education, President Pro Tempore of the Senate, Speaker of the
3 House of Representatives, and to the respective chairs of the
4 committees with responsibility for common education policy in each
5 legislative chamber.

6 H. The parent or legal guardian of any student who is found to
7 have a reading deficiency ~~and is not meeting grade-level reading~~
8 ~~targets~~ and has been provided a program of Tier 2 or Tier 3 reading
9 ~~instruction~~ interventions as provided for in paragraph 1 of
10 subsection D of this section shall be notified in writing ~~of no~~
11 later than thirty (30) days after the identification of the reading
12 deficiency and be accompanied by the individual reading intervention
13 plan developed in paragraph 2 of subsection D of this section. The
14 notification shall include the following:

15 1. That the student has been identified as having a ~~substantial~~
16 ~~deficiency in~~ reading deficiency;

17 2. A description of the current services that are provided to
18 the student pursuant to subsection D of this section;

19 3. A description of the proposed ~~intensive~~ Tier 2 or Tier 3
20 intervention services and supports that will be provided to the
21 student that are designed to remediate the identified area of
22 reading deficiency as provided for in ~~paragraph 2 of subsection F~~ D
23 of this section;

1 4. That the parent or legal guardian shall be informed in
2 writing of the progress of the student toward grade-level reading at
3 least every thirty (30) days and provided with strategies to assist
4 at home;

5 5. That if the child's reading deficiency is not remediated by
6 the end of third grade, the child shall not be promoted to fourth
7 grade unless a good-cause exemption is met;

8 6. That a student who is promoted to the fourth grade for good
9 cause shall receive supplemental intensive Tier 2 or Tier 3
10 intervention services unless he or she is a student who meets the
11 definition of a student with the most significant cognitive
12 disabilities;

13 ~~5. Strategies~~ 7. A description of the specific skill deficits
14 of the child and strategies for parents or legal guardians to use in
15 helping their child succeed in reading proficiency; and

16 ~~6. 8.~~ The grade-level performance scores of the student; and

17 9. That while the statewide English Language Arts assessment is
18 the initial determinate for promotion, students may be provided with
19 an alternative reading assessment option that is recommended by the
20 Commission for Educational Quality and Accountability and approved
21 by the State Department of Education to demonstrate sufficient
22 reading skills for promotion to fourth grade.

23 I. No student may be assigned to a grade level based solely on
24 age or other factors that constitute social promotion.

1 J. 1. Any incoming third-grade student identified with a
2 reading deficiency shall be provided Tier 2 or Tier 3 interventions
3 to remedy his or her specific reading deficiency. Intervention
4 services shall include effective instructional strategies to
5 accelerate student progress and be delivered by a highly qualified
6 teacher.

7 2. Public school districts shall review individual reading
8 intervention plans for all incoming third-grade students identified
9 with a reading deficiency. The review shall address additional
10 supports and services the student will receive. The supports and
11 services shall include reading instruction and Tier 2 or Tier 3
12 intervention services and supports to correct any identified area of
13 reading deficiency.

14 K. 1. Beginning with the 2027-2028 school year, third-grade
15 students shall demonstrate sufficient reading skills for promotion
16 to fourth grade. Students shall be provided the following options
17 to demonstrate sufficient reading skills for promotion to fourth
18 grade:

19 a. scoring above the below basic level on the third-grade
20 statewide English Language Arts assessment, or

21 b. earning an acceptable score on an alternative
22 standardized reading assessment as recommended by the
23 Commission for Educational Quality and Accountability
24 and approved by the State Board of Education.

1 2. If the third-grade student cannot demonstrate sufficient
2 reading skills on one of the two options described in paragraph 1 of
3 this subsection and does not qualify for a good-cause exemption, the
4 student shall be retained in the third grade for the next school
5 year. Screening instruments described in this section shall not be
6 used for promotion purposes.

7 L. The district school board may only exempt students from
8 mandatory third-grade retention, as provided in subsection K of this
9 section, for good cause. A student who is promoted to fourth grade
10 with a good-cause exemption, except for students who meet the
11 definition of a student with the most significant cognitive
12 disabilities, shall continue to receive Tier 2 or Tier 3 reading
13 intervention that includes specific reading strategies prescribed in
14 the student's individual reading intervention plan until the
15 deficiency is remedied. The school district shall assist schools
16 and teachers with the implementation of reading strategies that
17 research has shown to be successful in improving reading among
18 students with reading difficulties. Good-cause exemptions shall be
19 limited to the following:

20 1. Students with disabilities whose Individualized Education
21 Program (IEP) indicates that participation in the statewide
22 assessment program is not appropriate, consistent with state law;
23
24

1 2. Students identified as English language learners who have
2 had less than two (2) years of instruction in an English-learner
3 program;

4 3. Students with disabilities who participate in the statewide
5 English Language Arts assessment and who have an IEP or a Section
6 504 plan that reflects that the student has received intensive
7 reading intervention for more than two (2) years but still
8 demonstrates a reading deficiency, or who was previously retained
9 for one (1) year in kindergarten, first, second, or third grade; and

10 4. Students who have received Tier 2 or Tier 3 reading
11 intervention for two (2) or more years but still demonstrate a
12 reading deficiency, and who were previously retained in
13 kindergarten, first, second, or third grade for a total of two (2)
14 years. No student shall be retained twice in third grade.

15 M. Requests to exempt students from the mandatory third-grade
16 retention requirement, as provided in subsection K of this section,
17 using one of the good-cause exemptions, as described in subsection L
18 of this section, shall be made consistent with the following:

19 1. Documentation shall be submitted from the student's teacher
20 to the school principal indicating that the promotion of the student
21 is appropriate. Such documentation shall consist only of the good-
22 cause exemption being requested, and the existing reading
23 intervention plan or IEP;

1 2. The school principal shall review and discuss the
2 recommendation for exemption with the student's teacher. If the
3 principal determines that the student meets one of the good-cause
4 exemptions based on the discussion and documentation provided, the
5 school principal shall make such recommendation in writing to the
6 school district superintendent. The school district superintendent
7 shall accept or reject the school principal's recommendation in
8 writing; and

9 3. The parents or legal guardians of a third-grade student
10 eligible for a good-cause exemption may choose that the student be
11 retained for one (1) year even if the school district superintendent
12 accepts a recommendation for a good-cause exemption pursuant to this
13 subsection.

14 N. The school district shall provide written notification to
15 the parent or legal guardian of any student who is retained. Such
16 notification shall state that his or her child has not met the
17 reading level required for promotion to the fourth grade, the
18 reasons the child is not eligible for a good-cause exemption, and
19 that his or her child will be retained in third grade. The
20 notification shall include a description of the proposed Tier 2 or
21 Tier 3 interventions that will be provided to the child to remedy
22 the identified areas of reading deficiency in the retained year.

23 O. Students that are withdrawn from public school to bypass
24 third-grade retention requirements, as outlined in subsection K of

1 this section, shall be subject to screening and OSTP testing upon
2 return to the public school system to determine appropriate grade
3 level upon re-entry.

4 P. Beginning with the 2028-2029 school year, students retained
5 under the provisions of subsection K of this section shall be
6 provided Tier 2 or Tier 3 reading intervention to remedy the
7 student's specific reading deficiency. The reading intervention
8 services shall include effective instructional strategies to
9 accelerate student progress. Each school district shall conduct a
10 review of student reading intervention plans for all students
11 retained in third grade. The review shall address additional
12 supports and services needed to remedy the identified areas of
13 reading deficiency and ensure the following are provided to retained
14 students:

15 1. A teacher with appropriate training and demonstrated
16 competency in evidence-based reading intervention. School districts
17 with only one third-grade teacher are exempt from the requirements
18 of this paragraph;

19 2. Tier 2 or Tier 3 reading intervention services and supports
20 to correct the identified areas of reading deficiency;

21 3. One of the following intervention supports:

22 a. a transitional instructional setting designed to
23 produce learning gains sufficient to meet fourth-grade
24 performance standards in all other core academic areas

1 while continuing to correct the areas of reading
2 deficiency,

3 b. before- or after-school supplemental research-based
4 reading intervention delivered by a teacher or tutor
5 with specialized reading training, or

6 c. summer academy programs designed to ensure that
7 participating students successfully complete grade-
8 level competencies in reading to enhance next-grade
9 readiness; and

10 4. A "Read at Home" plan as created by the Office of
11 Educational Quality and Accountability shall be outlined in a
12 parental or legal guardian notification, including participation in
13 parent or legal guardian training workshops or regular parent-guided
14 or legal guardian-guided home reading activities which are aligned
15 to scientifically based reading research.

16 Q. 1. Each school district board of education shall annually
17 publish on the school website and report electronically to the State
18 Department of Education, the Office of Educational Quality and
19 Accountability, and the Secretary of Education by September 1 of
20 each year the following information on the prior school year:

21 a. the policies and procedures adopted by the school
22 district board of education to implement the
23 provisions of this section. The information submitted
24 shall include expenditures related to implementing the

provisions of this section, the number of staff implementing the provisions of this section, and average daily classroom time devoted to implementing the provisions of this section,

b. by grade, the number and percentage of all students in kindergarten through third grade who ~~did not meet grade-level targets~~ demonstrated a reading deficiency based on a screening instrument administered pursuant to subsection A of this section,

c. by grade, the number and percentage of all students in kindergarten through third grade who have been enrolled in the district for fewer than two (2) years,

d. by grade, the number and percentage of all students in kindergarten through third grade who were retained,

e. by grade, the number and percentage of students in kindergarten through third grade who demonstrated grade-level proficiency based on a screening instrument administered pursuant to subsection A of this section, ~~and~~

~~e.~~

f. by grade, the number and percentage of students in kindergarten through third grade who are on an individualized education program (IEP) in accordance with the Individuals with Disabilities Education Act

(IDEA) and who demonstrated grade-level proficiency based on a screening instrument administered pursuant to subsection A of this section or an alternative assessment prescribed by the student's IEP,

g. the number and percentage of all students in third grade who demonstrated sufficient reading skills for promotion to the next grade on the alternative reading assessment,

h. the number and percentage of students in third grade who were promoted to fourth grade for good cause, by category of good cause as specified in subsection L of this section, and

i. the performance of fourth-grade students on the statewide English Language Arts assessment who were promoted with a good-cause exemption in the previous school year.

2. The State Department of Education shall establish a uniform format for school districts to report the information required in this subsection. The format shall be developed with input from school districts and shall be provided not later than ninety (90) days prior to the annual due date. The Department shall annually compile the information required, along with state-level summary information, and electronically report the information to the public, the Governor, the Secretary of Education, the President Pro

1 Tempore of the Senate, and the Speaker of the House of
2 Representatives and shall post such information on its website.

3 ~~K.~~ R. The State Department of Education shall provide technical
4 assistance as needed to aid school districts in administering the
5 provisions of the Strong Readers Act.

6 ~~H.~~ S. On or before January 31 of each year, the State
7 Department of Education shall electronically submit to the Governor,
8 the President Pro Tempore of the Senate, the Speaker of the House of
9 Representatives, and members of the committees with responsibility
10 over common education in both houses of the Legislature a Strong
11 Readers Report which shall include, but is not limited to, trend
12 data detailing three (3) years of data, disaggregated by student
13 subgroups to include economically disadvantaged, major racial or
14 ethnic groups, students with disabilities, and English language
15 learners, as appropriate for the following:

16 1. The statewide aggregate number and percentage of students in
17 kindergarten through third grade determined to be at risk for
18 reading difficulties compared to the total number of students
19 enrolled in each grade;

20 2. The statewide aggregate number and percentage of students in
21 kindergarten who continue to be at risk for reading difficulties as
22 determined by the year-end administration of the screening
23 instrument required in subsection A of this section;

24

1 3. The statewide aggregate number and percentage of students in
2 kindergarten through third grade who have successfully completed
3 their program of reading instruction and are reading on grade level
4 as determined by the results of screening instruments administered
5 pursuant to subsection A of this section;

6 4. The statewide aggregate and district-specific number and
7 percentage of students that meet or do not meet grade-level targets
8 for reading based on screening instruments administered pursuant to
9 subsection A of this section;

10 5. The statewide aggregate and district-specific number and
11 percentage of students that were retained in third grade;

12 6. The amount of funds received by each district for
13 implementation of the Strong Readers Act;

14 ~~6.~~ 7. An evaluation and narrative interpretation of the report
15 data analyzing the impact of the Strong Readers Act on students'
16 ability to read at grade level;

17 ~~7.~~ 8. The type of reading instruction practices and methods
18 currently being used by school districts in the state;

19 ~~8.~~ 9. Socioeconomic information, access to reading resources
20 outside of school, and screening for and identification of learning
21 disabilities for students not reading at the appropriate grade level
22 in kindergarten and first through third grade;

23 ~~9.~~ 10. By grade level, the types of intensive intervention
24 efforts being conducted by school districts for students who are not

1 on an IEP and who are not reading at the appropriate grade level and
2 for students who are on an IEP and who are not reading at the
3 appropriate grade level; and

4 ~~10.~~ 11. Any recommendations for improvements or amendments to
5 the Strong Readers Act.

6 The State Department of Education may contract with an
7 independent entity for the reporting and analysis requirements of
8 this subsection.

9 ~~M.~~ T. Copies of the results of the screening instruments
10 administered pursuant to subsection A of this section shall be made
11 a part of the permanent record of each student.

12 SECTION 5. AMENDATORY 70 O.S. 2021, Section 1210.508D,
13 as amended by Section 6, Chapter 411, O.S.L. 2024 (70 O.S. Supp.
14 2025, Section 1210.508D), is amended to read as follows:

15 Section 1210.508D. A. Contingent on the provision of
16 appropriated funds designated for the Strong Readers Act, ~~school~~
17 ~~districts may be allocated monies for each enrolled kindergarten~~
18 ~~student or first, second, and third grade student of the current~~
19 ~~school year who is found to be in need of remediation or intensive~~
20 ~~intervention services in reading. The allocation shall be~~
21 ~~distributed to each school district upon approval of the strong~~
22 ~~readers plan for the school district by the State Board of Education~~
23 ~~and the submittal of a child-count report to the State Department of~~
24 ~~Education that details the number of students identified as needing~~

~~remediation or intensive intervention services in reading. To determine a per student allocation amount, the total amount of funds available for allocation each year shall be divided by the total number of students in the state identified as in need of remediation or intensive intervention services in reading as provided for in Section 1210.508C of this title. Each school district shall be allocated an amount equal to the per student allocation amount multiplied by the number of identified students enrolled in the school district.~~

~~B. Beginning with the 2022-2023 school year, districts receiving more than Two Thousand Five Hundred Dollars (\$2,500.00) pursuant to subsection A of this section shall spend no less than ten percent (10%) to provide professional development for teachers teaching prekindergarten through grade five. The professional development shall include training in the science of reading including how students learn to read; training in providing explicit and systematic instruction in phonological awareness, decoding, fluency, vocabulary, and comprehension; implementing reading strategies that research has shown to be successful in improving reading among students with reading difficulties; and instructional materials required for implementation.~~

~~C. By June 30, 2022, the Department shall approve and publish a list of professional development programs that are evidence-based and directly address the cognitive science of how students learn to~~

~~read for which districts are permitted to use the funds received~~
~~under this section.~~ each school district shall receive a base
literacy allocation calculated on a per-student basis for each
student enrolled in kindergarten and grades one through three, as
reported in the October 1 enrollment counts of the current school
year.

The base literacy allocation shall support the prevention of
reading deficiencies and the implementation of strong core literacy
instruction within Tier 1 of a multi-tiered system of supports
(MTSS) framework, including but not limited to:

1. Evidence-based core literacy instruction and instructional
materials aligned with the science of reading;

2. Universal screening and diagnostic assessment necessary to
identify students at risk for reading deficiencies;

3. Progress monitoring and data use to inform instructional
decisions;

4. Family literacy resources and engagement activities aligned
with classroom instruction; and

5. Professional development and instructional coaching
necessary to implement the district Strong Readers plan.

The State Board of Education shall allocate not less than sixty
percent (60%) of funds appropriated for purposes of this section to
support the base literacy allocation described in this subsection.

1 B. 1. In addition to the base literacy allocation provided
2 pursuant to subsection A of this section, school districts shall
3 receive supplemental weighted funding for students identified
4 through screening and progress-monitoring data as requiring
5 additional reading intervention services within a multi-tiered
6 system of supports (MTSS) framework.

7 2. Supplemental weighted funding shall support intervention
8 services beyond Tier 1 core instruction and shall be distributed
9 according to the following categories:

10 a. Tier 2 - Supplemental Intervention Weight.

11 Students identified as requiring targeted reading
12 intervention beyond core instruction shall generate
13 supplemental funding to support additional
14 instructional time, reduced group size, and evidence-
15 based intervention.

16 b. Tier 3 - Intensive Intervention Weight.

17 Students identified as demonstrating a significant
18 reading deficiency requiring intensive,
19 individualized, or highly targeted intervention shall
20 generate supplemental funding reflecting the increased
21 instructional intensity required at this level.

22 3. Supplemental funding received pursuant to this subsection
23 shall be used exclusively for intervention services beyond Tier 1
24 core instruction, including:

- a. additional instructional time devoted to reading intervention,
- b. reduced instructional group sizes necessary to deliver intensive instruction,
- c. specialized instructional materials and intervention programs aligned with the science of reading,
- d. compensation for educators delivering intervention services, and
- e. professional development necessary to ensure educators providing intervention services have extensive training in the science of reading.

4. The State Board of Education shall allocate not less than thirty percent (30%) of funds appropriated for purposes of this section to support supplemental weighted intervention funding described in this subsection and shall promulgate rules establishing the methodology for calculating weights, documentation requirements, and procedures for verifying intervention participation.

5. Students shall be counted for purposes of supplemental weighted funding pursuant to this subsection only when the school district has documented that the student is receiving intervention services consistent with the level of instructional intensity required at the applicable tier.

6. School districts shall maintain documentation demonstrating:

- a. identification of the student through an approved universal screening assessment and supporting diagnostic or progress-monitoring data,
- b. implementation of an intervention plan specifying the instructional approach, frequency, duration, and group size of intervention services, and
- c. ongoing progress monitoring used to determine the effectiveness of the intervention and inform instructional adjustments.

7. Students shall not generate supplemental weighted funding unless intervention services are provided beyond Tier 1 core instruction. The State Department of Education may review intervention documentation and program implementation to verify eligibility for supplemental weighted funding distributed pursuant to this section.

8. The State Board of Education shall promulgate rules establishing reasonable expectations for the proportion of students receiving supplemental and intensive intervention services within a multi-tiered system of supports framework.

9. When the reported percentage of students receiving Tier 2 or Tier 3 intervention services significantly exceeds expected ranges, the State Department of Education may require additional documentation or provide technical assistance to ensure intervention

1 services are implemented with the instructional intensity required
2 at each tier.

3 C. 1. In order to encourage continuous improvement in student
4 reading outcomes and to support the sustainability of effective
5 intervention services, a portion of funds appropriated pursuant to
6 this section shall be used to provide incentives to school districts
7 demonstrating measurable improvement in student reading performance.

8 2. Incentive funding may include recognition of:

9 a. students who demonstrate sufficient progress to exit
10 Tier 3 intensive intervention,

11 b. students who demonstrate sufficient progress to exit
12 Tier 2 supplemental intervention, and

13 c. schools or districts demonstrating measurable
14 reductions in the number or percentage of students
15 requiring supplemental or intensive intervention.

16 3. The State Board of Education shall allocate up to ten
17 percent (10%) of funds appropriated for purposes of this section for
18 literacy improvement incentives and shall promulgate rules
19 establishing criteria for determining eligibility for such
20 incentives.

21 ~~D. If a teacher attends and completes a professional~~
22 ~~development institute in elementary reading approved by the~~
23 ~~Commission for Educational Quality and Accountability during the~~
24 ~~summer or when school is not in session, the teacher may receive a~~

~~stipend equal to the amount of the cost for a substitute teacher,
based on the amount of funds allocated.~~

SECTION 6. AMENDATORY 70 O.S. 2021, Section 1210.508E,
as amended by Section 7, Chapter 411, O.S.L. 2024 (70 O.S. Supp.
2025, Section 1210.508E), is amended to read as follows:

Section 1210.508E. A. If a teacher determines that a student
in kindergarten or first through third grade is not reading at grade
level by the end of the second quarter of the school year, the
parent or legal guardian of the student shall be notified of:

1. The reading level of the student;

2. The program of reading instruction for the student as
required pursuant to the Strong Readers Act; and

3. The potential need for the student to participate in a
summer academy or other program designed to assist the student in
attaining grade-level reading skills.

B. A teacher who determines a student in kindergarten or first
through third grade is not meeting grade-level targets for reading
may, after consultation with the parent or legal guardian of the
student, recommend that the student participate in and complete a
transitional instructional setting, before- or after-school
supplemental tutoring, a summer academy program, or other program.

C. Summer academy programs shall be designed to ensure that
participating students successfully complete grade-level
competencies in reading to enhance next-grade readiness. A summer

academy reading program shall be a program that incorporates ~~the~~
~~content of a scientifically research-based professional development~~
~~program administered by the Commission for Educational Quality and~~
~~Accountability or a scientifically research-based reading program~~
~~administered by the State Board of Education~~ Tier 2 or Tier 3
reading interventions and is taught by ~~teachers who have~~
~~successfully completed professional development in the reading~~
~~program~~ a highly qualified teacher or ~~who are~~ a certified ~~as~~ reading
~~specialists~~ specialist. The program shall provide explicit,
systematic, sequential, and cumulative reading intervention services
and supports to correct students' identified areas of reading
deficiency.

D. School districts may approve an option for students who are
unable to attend a summer academy. The optional program may
include, but is not limited to, an approved private provider of
instruction, approved computer- or Internet-based instruction, or an
approved program of reading instruction monitored by the parent or
legal guardian. School districts shall not be required to pay for
the optional program but shall clearly communicate to the parent or
legal guardian the expectations of the program and any costs that
may be involved.

E. ~~Subject to the availability of funds, beginning~~ 1. School
districts shall provide at least one of the following Tier 2 or Tier
3 reading intervention options to all third-grade students scoring

1 at the below basic achievement level on the third-grade statewide
2 English Language Arts assessment, as well as students who have
3 completed kindergarten through second grade and are at risk of
4 reading deficiency as determined by a screening instrument
5 administered pursuant to subsection A of Section 1210.508C of this
6 title.

- 7 a. a transitional instructional setting, which is
8 designed to produce learning gains sufficient to meet
9 fourth-grade performance standards in all other core
10 academic areas while continuing to correct the areas
11 of reading deficiency,
- 12 b. before- or after-school supplemental research-based
13 reading intervention delivered by a teacher or tutor
14 with specialized reading training, or
- 15 c. summer academy programs designed to ensure that
16 participating students successfully complete grade-
17 level competencies in reading to enhance next-grade
18 readiness.

19 2. Summer reading academies shall include, at a minimum,
20 seventy (70) hours of instructional time in reading and shall not
21 use balanced literacy and whole language models, such as three-
22 cueing as defined in subsection D of Section 1210.508B of this
23 title.

1 F. Beginning one (1) year after implementation of this section,
2 the requirements of subsection ~~B~~ E of this section ~~may~~ shall be
3 expanded to apply to students in fourth grade. Each year
4 thereafter, the requirements ~~may~~ shall be expanded by one grade
5 level until the requirements apply to third-grade students through
6 eighth-grade students. ~~Summer academy programs~~ The Tier 2 or Tier 3
7 reading intervention options outlined in subsection E of this
8 section shall be designed for each grade level. Nothing in this
9 section shall prevent the State Board of Education or a school
10 district board of education from utilizing private, local, or
11 federal funds to implement this section.

12 ~~F.~~ G. The State Board of Education shall adopt rules to
13 implement the provisions of this section ~~which shall include~~
14 ~~requirements for instructional time for summer academy programs,~~
15 ~~teacher qualifications, and evaluation of student achievement as a~~
16 ~~result of summer academy programs or other optional programs~~ and
17 shall require school districts to report on the availability of Tier
18 2 or Tier 3 reading intervention options, the number of students
19 participating in each option, and evaluation of student achievement
20 as a result of each provided option.

21 SECTION 7. AMENDATORY 70 O.S. 2021, Section 1210.508F,
22 as last amended by Section 3, Chapter 297, O.S.L. 2025 (70 O.S.
23 Supp. 2025, Section 1210.508F), is amended to read as follows:
24

1 Section 1210.508F. A. The Commission for Educational Quality
2 and Accountability shall ensure that the reading competencies for
3 elementary teachers are included in the competencies for special
4 education teachers.

5 B. The Commission for Educational Quality and Accountability in
6 collaboration with the Oklahoma State Regents for Higher Education
7 shall ensure that all teachers ~~and adjuncts~~ of early childhood
8 education, elementary education, and special education are provided
9 quality training in intervention, instruction, and remediation
10 strategies in the science of reading to provide explicit and
11 systematic instruction in phonological awareness, decoding, fluency,
12 vocabulary, and comprehension and implement reading strategies that
13 research has shown to be successful in improving reading among
14 students with reading difficulties. Professional development may
15 include effective use of data, progress monitoring, and intervention
16 planning as it fits into a multi-tiered system of supports (MTSS)
17 framework. In addition, quality education for prospective teachers
18 shall be provided in research-based instructional strategies for
19 instruction, assessment, and intervention for literacy development
20 for all students including advanced readers, typically developing
21 readers, and struggling readers who are coping with a range of
22 challenges including, but not limited to, English language learners,
23 students at risk for reading deficiencies, and learners students
24 with handicapping conditions and learning disabilities, including

1 dyslexia. Quality training shall include guidance from professional
2 resources such as the Report of the National Reading Panel, Response
3 to Intervention guidelines, and professional organizations such as
4 the Council for Exceptional Children, International Dyslexia
5 Association, International Literacy Association, National Council of
6 Teachers of English, and National Association for the Education of
7 Young Children.

8 C. All institutions within The Oklahoma State System of Higher
9 Education that offer elementary, early childhood education, or
10 special education programs approved by the Commission for
11 Educational Quality and Accountability shall incorporate into those
12 programs the requirement that teacher candidates study the five
13 elements of reading instruction which are phonological awareness,
14 decoding, fluency, vocabulary, and comprehension and the study
15 methods based on the science of reading. Teacher candidates shall
16 study strategies including, but not limited to, instruction that is
17 explicitly taught, sequenced, multimodal (reading, writing,
18 speaking, listening, hands-on, etc.), multidisciplinary, and
19 reflective to adapt for individual learners. Additionally, teacher
20 candidates shall study the negative impacts of balanced literacy and
21 whole language models, including three-cueing practices. They shall
22 further study how to identify balanced literacy and whole language
23 models including three-cueing practices in curriculum, and
24 subsequently, learn how to implement reading instruction using high-

1 quality instructional materials grounded in the science of reading
2 which do not include balanced literacy and whole language models
3 such as three-cueing, and the negative impacts of three-cueing.

4 D. Effective July 1, 2025, any person seeking initial
5 certification in a special education, early childhood education, or
6 elementary education program in this state shall be required to
7 successfully complete a comprehensive reading instruction assessment
8 approved by the Commission for Educational Quality and
9 Accountability as a condition for certification. The assessment
10 shall be aligned to scientifically based reading research and
11 evaluate the certification applicant's knowledge and understanding
12 of the five elements of reading instruction which are phonological
13 awareness, decoding, fluency, vocabulary, and comprehension.

14 E. Candidates applying for adjunct positions, an alternative
15 placement teaching certificate, or an emergency teaching certificate
16 in elementary education shall complete instruction in the science of
17 reading as determined by the Commission for Educational Quality and
18 Accountability and the State Board of Education.

19 SECTION 8. AMENDATORY Section 2, Chapter 288, O.S.L.
20 2023, as amended by Section 9, Chapter 411, O.S.L. 2024 (70 O.S.
21 Supp. 2025, Section 1210.508H), is amended to read as follows:

22 Section 1210.508H. A. Beginning with the ~~2023-2024~~ 2026-2027
23 school year, the State Department of Education shall establish and
24 maintain a ~~three-year pilot~~ program to employ a literacy

1 ~~instructional team~~ coaches to support school districts in
2 implementation of the requirements of Section 1210.508C of this
3 title. The Department shall provide technical assistance for
4 literacy instruction, dyslexia, and related disorders, and serve as
5 a primary source of information and support for schools,
6 administrators, and teachers in addressing the needs of students
7 struggling with literacy, reading deficiencies, dyslexia, ~~and~~
8 ~~related disorders~~ or identified with the risk characteristics
9 associated with dyslexia.

10 B. The Department shall employ ~~a literacy instructional team~~
11 ~~with team members~~ coaches who are placed ~~regionally~~ in six major
12 geographic regions across the state. The literacy ~~instructional~~
13 ~~teams~~ coaches shall assist schools, administrators, educators, and
14 general education and special education teachers in recognizing
15 educational needs to improve literacy outcomes for all students
16 including those with reading deficiencies, dyslexia, or identified
17 with the risk characteristics associated with dyslexia. Priority
18 shall be given to lowest performing schools on the end-of-year
19 English Language Arts assessment or the statewide reading screener
20 as approved by the State Department of Education. The role of the
21 literacy ~~instructional team~~ coaches shall also include increasing
22 professional awareness and instructional competencies to meet the
23 educational needs of all students including those with reading
24 deficiencies, dyslexia, or identified with risk characteristics

1 associated with dyslexia. The Department shall prioritize supports
2 and interventions including enrollment in reading trainings and
3 professional development for schools which have the highest
4 percentage of students who do not demonstrate sufficient reading
5 skills as established by the State Board of Education.

6 C. Literacy coaches shall provide systems and instructional
7 support to schools to strengthen the implementation of evidence-
8 based literacy instruction and intervention and to build the
9 capacity of educators and school leaders to sustain effective
10 literacy practices. Literacy coaches shall serve in a supportive,
11 non-evaluative capacity and shall not conduct personnel evaluations
12 or impose personnel actions.

13 D. Literacy ~~instructional team members~~ coaches employed by the
14 Department shall be required to pass Oklahoma's "Foundations of
15 Reading" test and shall have training in:

16 1. The science of how students learn to read including
17 phonological awareness, phonics, fluency, vocabulary, comprehension,
18 writing, and language;

19 2. Foundation of multisensory, explicit, systematic, and
20 structured reading instruction;

21 3. Identification of and the use of appropriate interventions,
22 accommodations, assistive technology, and teaching techniques for
23 ~~struggling~~ students with dysgraphia, dyslexia, a related reading
24 disorder, or reading deficiency;

1 4. The requirements of the Strong Readers Act;

2 5. Special education laws and procedures; and

3 6. Appropriate interventions, accommodations, and assistive
4 technology supports for students with dyslexia or a related
5 disorder.

6 ~~D.~~ E. The literacy ~~instructional team members~~ coaches employed
7 by the Department shall report to the Program Director for Literacy
8 at the Department and have:

9 ~~1. A~~ a minimum of ~~five~~ twenty regional literacy ~~leads~~ coaches,
10 at least one who shall be designated by the Department as a dyslexia
11 specialist to provide school districts with support and resources
12 that are necessary to assist students with dyslexia. The Department
13 shall give preference to educators applying for regional literacy
14 ~~lead~~ coaches who:

- 15 1. a. hold a master's degree in education with three (3)
16 years of documented successful experience teaching
17 reading as evidenced by reading assessment scores, or
18 b. hold a bachelor's degree with five (5) years of
19 documented successful experience teaching reading as
20 evidenced by reading assessment scores with a minimum
21 of three (3) years of literacy experience at the
22 state, district, or school level;

23 2. Have a valid certificate to teach issued by the State Board
24 of Education;

1 3. Have experience delivering professional development specific
2 to literacy instruction, mentoring and coaching classroom teachers,
3 leading others in a collaborative process, and analyzing and using
4 student performance data for instructional purposes;

5 ~~have~~ 4. Have an endorsement or certification as a certified
6 structured literacy dyslexia specialist or certified academic
7 language therapist~~;~~

8 ~~b. are~~ 5. Are knowledgeable of multitiered systems of support,
9 and

10 ~~c. have~~ 6. Have been trained in the identification of and
11 ~~intervention for dyslexia and related disorders including best~~
12 ~~practice~~ the use of appropriate interventions and treatment models
13 ~~for,~~ accommodations, and teaching techniques for students with
14 dysgraphia, dyslexia and

15 ~~2. A minimum of ten literacy specialists,~~ a related reading
16 disorder, or reading deficiency.

17 F. 1. The State Department of Education shall assign literacy
18 coaches to school districts that are identified by the Department
19 based on the number and percentage of students scoring in the below
20 basic performance level on the standards of reading foundations and
21 processes and the vocabulary portions of the statewide third-grade
22 assessment administered pursuant to Section 1210.508C of this title
23 or the statewide reading screener in kindergarten through second
24 grade.

1 2. If a district already employs instructional coaches, that
2 district shall not be required to utilize Department-assigned
3 literacy coaches so long as the local instructional coaches
4 participate in a Department-led Coaching Improvement Community
5 aligned to the Science of Reading and national coaching best
6 practices.

7 G. Literacy coaches assigned to school districts pursuant to
8 the provisions of this section shall:

- 9 a. provide technical support to teachers responsible for
10 reading instruction and reading specialists,
11 b. assist administrators, educators, and reading
12 specialists in implementing evidence-based literacy
13 practices,
14 c. design and conduct professional development to meet
15 the needs of teachers and administrators in the area
16 of literacy,
17 d. provide clear, practical, timely, and candid written
18 and oral feedback to teachers and administrators based
19 on coaching cycles, and
20 e. meet regularly with teachers, reading specialists, and
21 administrators to review literacy data and make
22 recommendations for adjustments in instructional
23 practices.

1 H. The Department shall give preference to educators applying
2 ~~for literacy specialist~~ to become a literacy coach who:

- 3 a. have training in the science of reading,
- 4 b. are knowledgeable of multi-tiered systems of support,
- 5 and
- 6 c. have been trained in the identification of and
7 ~~intervention for dyslexia and related disorders~~
8 ~~including best practice~~ the use of appropriate
9 ~~interventions and treatment models for,~~
10 accommodations, and teaching techniques for students
11 with dysgraphia, dyslexia, a related reading disorder,
12 or reading deficiency, and
- 13 d. have previously retired and were a highly effective
14 elementary school teacher based on student reading
15 scores on the statewide English Language Arts
16 assessment or teacher evaluations.

17 I. If a school district that is prioritized for supports and
18 interventions pursuant to this section declines to accept assistance
19 from a literacy coach, the district shall not be eligible to receive
20 funds pursuant to Section 1210.508D of this title.

21 J. 1. School districts shall have a minimum of one reading
22 specialist, interventionist, or staff member with an early literacy
23 micro-credential, for each public elementary school.

1 2. For school districts who do not currently employ or contract
2 with a reading specialist or interventionist, the Office of
3 Educational Quality and Accountability shall work with public or
4 private institutions of higher education within this state to
5 develop teacher training academies for teachers to obtain an early
6 literacy micro-credential. The academies shall provide a
7 competency-based professional learning micro-credential after
8 completing an intensive teacher training academy held at Oklahoma-
9 based universities.

10 3. The teacher training academies developed pursuant to
11 paragraph 2 of this subsection may include in-person instruction,
12 synchronous online, or hybrid options. The intensive academy shall
13 be focused on MTSS, the Science of Reading, and standards alignment
14 for early literacy instruction in kindergarten through third grade.
15 Districts shall select at least one staff member per school, with
16 priority given to districts without a current full- or part-time
17 reading specialist or interventionist, per year to attend the
18 teacher training academies. These individuals can be teachers and
19 full- or part-time interventionists who will work with students in
20 kindergarten through third grade.

21 4. The Office of Educational Quality and Accountability shall
22 set program criteria for the micro-credential course and vet higher
23 education programs seeking to issue the credential to Oklahoma
24 educators. The Commission for Educational Quality and

1 Accountability shall approve higher education institutions allowed
2 to issue an early literacy micro-credential. Both public and
3 private higher education institutions may apply.

4 5. Instructors for teacher training academies shall possess
5 relevant field experience, including demonstrated recent practice in
6 the field.

7 6. The State Department of Education shall fund a stipend of
8 Three Thousand Dollars (\$3,000.00) for up to one staff member per
9 school serving students in kindergarten through third grade to
10 attend and receive an early literacy micro-credential. The
11 Department shall fund any public or private higher education
12 institution approved by the Commission for Educational Quality and
13 Accountability with One Thousand Five Hundred Dollars (\$1,500.00)
14 per kindergarten through third grade staff member that attends and
15 receives an early literacy micro-credential.

16 ~~E.~~ K. The State Department of Education shall electronically
17 submit a report to the Governor, the President Pro Tempore of the
18 Senate, and the Speaker of the House of Representatives by December
19 31, 2026, that includes an evaluation of the pilot program by school
20 districts, data on whether the program had an impact on increasing
21 the number of students who demonstrate proficiency in reading, and
22 recommendations for changes to the Strong Readers Act.

1 SECTION 9. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 1210.508J of Title 70, unless
3 there is created a duplication in numbering, reads as follows:

4 A. There is hereby created in the State Treasury a revolving
5 fund for the State Department of Education to be designated the
6 "Strong Readers Revolving Fund". The fund shall be a continuing
7 fund, not subject to fiscal year limitations, and shall consist of
8 all monies received by the State Department of Education from
9 private businesses, nonprofit organizations, and federally
10 recognized Indian tribes or nations. All monies accruing to the
11 credit of said fund are hereby appropriated and may be budgeted and
12 expended by the State Department of Education for the purpose of
13 improving reading outcomes in accordance with the Strong Readers
14 Act. Expenditures from said fund shall be made upon warrants issued
15 by the State Treasurer against claims filed as prescribed by law
16 with the Director of the Office of Management and Enterprise
17 Services for approval and payment.

18 B. Donors to the Strong Readers Revolving Fund shall designate
19 a specific school, school district, or region to receive their
20 donation. The State Department of Education shall distribute monies
21 from the Strong Readers Revolving Fund in strict compliance with
22 donor designations required by this subsection.

23 C. Monies in the Strong Readers Revolving Fund may be expended
24 for implementation support services, teacher training, data

1 integration, evaluation, reporting, micro-credential stipends and
2 program fees, and professional learning, to support statewide MTSS
3 implementation goals.

4 SECTION 10. It being immediately necessary for the preservation
5 of the public peace, health or safety, an emergency is hereby
6 declared to exist, by reason whereof this act shall take effect and
7 be in full force from and after its passage and approval.

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